

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With
DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**RESPONDENTS' MOTION TO SEAL COMPLAINANTS' COWARDLY
AND UNAUTHORIZED REPLY REGARDING COMPLAINANTS' MOTION TO
DICTATE THE PRESIDING OFFICER'S SCHEDULE**

Pursuant to Rules 69 and 71, Respondents Empire United Line and Michael Hitrinov submit this Motion to Seal Complainants' Unauthorized Reply Regarding Complainants' Motion to Dictate the Presiding Officer's Schedule.¹

¹ Counsel for Respondents contacted Counsel for Complainants to see if he consents to this motion, but has not received any response.

Complainants' unauthorized reply is without doubt the most vile, cowardly pleading I have come across in my 38 years as a lawyer, including my year clerking on the New Jersey Supreme Court, where we reviewed serious disciplinary matters. To refer to it as scurrilous would not do justice to the depth that Complainants plumb. The Presiding Officer would be well justified in rejecting it sua sponte, and adding it as another example of the continuing failure of Complainants' Counsel to observe the FMC's Rules that has required Respondents' Counsel to move for an order to show cause.

Absent such rejection by the Presiding Officer, we will in due course file an appropriate pleading in response. In this motion, however, we request that Complainants' pleading be sealed. We further request that this be done immediately on a provisional basis, pending Complainants' response hereto.

As Complainants' Counsel themselves argued (and we agree) the use of scurrilous (or worse) language is ample grounds for sealing. In this case, the undersigned believes that Complainants' false assertions go well beyond the protection of litigation immunity from defamation, and so, if not sealed, would leave Complainants' Counsel defenseless should Ms. Vohra choose to sue, as the undersigned believes she should.

It is not necessary for me to defend Ms. Vohra, an unusually mature and talented young lawyer. After only a few months, she clearly knows both the Shipping Act and the FMC Rules well better than Messrs. Nussbaum and Katz. And unlike Mr. Nussbaum, Ms. Vohra has never been chastised by a Federal District Court Judge for filing frivolous pleadings.

Complainants' Counsel have apparently come to realize that their personal attacks on me are pointless, as I have sufficient standing and reputation that their fiction is easily recognized as

such and can do me no harm (indeed, I show it to people for amusement value). Accordingly, as weasels rather than men, they have shifted their point of attack to Ms. Vohra, who has a bright future but is not yet so established. Although I expect that even strangers would still see through the lies, it is wholly inappropriate to subject Ms. Vohra to the risk of such calumny.²

As I am the lead counsel for Respondents on this matter, every word that is submitted by Nixon Peabody is my responsibility, and the buck stops with me. There is not a single filing with the Nixon Peabody name on it that I have not written or reviewed and authorized. All of our filings are, without exception, either (i) prepared by me alone, (ii) prepared by me with comments from Ms. Vohra, or (ii) prepared collectively, with my final review and decision.

The filing yesterday was no exception. Indeed, every word of the pleading itself was written by me alone; unusually, Ms. Vohra had no suggestions for improvement. Ms. Vohra did prepare the certificate of service and cover letter, but Complainants do not attack either of those routine and fairly standard documents. If the writing in the response is poor (a matter I leave to those more qualified than Complainants' Counsel), that is my fault and mine alone.

² Counsel may suggest that their baseless claims are justified by my pointing out those instances where Mr. Katz has had at least a primary authorship role. That is wrong both because anyone who can read can readily identify Mr. Katz's writing by style and tone and by his misuse of words and abuse of the Thesaurus, and because that does not then become the launching pad for such vituperative and baseless personal attacks.

For the foregoing reasons, the undersigned requests that Complainants' disgraceful filing be sealed (unless, of course, it is rejected sua sponte by the Presiding Officer), and that such sealing be ordered immediately as a provisional matter pending any response from Complainants.

Respectfully submitted,

Eric Jeffrey
Nixon Peabody LLP
799 9th Street, N.W., Suite 500
Washington, D.C. 20001
202-585-8000